**Program Name:** Charleys 2015

**Program ID :** PRG-1009446

**Operator:** CHARLEY'S GRILLED SUBS

**Effective Dates:** January 1, 2015 through December 31, 2015
**Print Date:** March 26, 2015

**Price Type:** Fixed Price

We are pleased to confirm pricing information for orders placed between January 1, 2015 and December 31, 2015 for the below named operators. During this time period, orders placed by operators through your authorized distributor will be priced by Kraft to your authorized distributor at a maximum of the fixed price type for the product(s) found in the pricing table (showing prices, allowance and contract volume).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Sylvia Nicholson

Kraft Representative

**List of Authorized Operators**

| Operator Number | Operator Name | Address |
|---|---|---|
| 0200432402 | CHARLEY'S GRILLED SUBS | 2500 FRAMERS DR COLUMBUS OH 43235 |

**List of Authorized Distributors**

| Customer Number | Company Name | Address |
|---|---|---|
| 0200046624 | AVALON FOODSERVICE INC | 1 AVALON DR CANAL FULTON OH 44614 |
| 0200998267 | CASH WA KEARNEY | 5905 W O ST LINCOLN NE 68528-9171 |

| | | |
|---|---|---|
| 0200629268 | CHENEY BROTHERS-OCALA | 2801 W SILVER SPRINGS BLVD OCALA FL 34475-5655 |
| 0200005735 | CHENEY BROTHERS-RIVIERA | 1 CHENEY WAY RIVIERA BEACH FL 33404-7000 |
| 0200955218 | DEE'S FOODSERVICE-ALBUQUERQUE | 3300 MENAUL BLVD NE ALBUQUERQUE NM 87107-1819 |
| 0200018845 | DICARLO DIST INC | 1630 N OCEAN AVE HOLTSVILLE NY 11742-1838 |
| 0200387046 | DOT FOODS | 3411 CYPERT WAY ARDMORE OK 73401-3732 |
| 0200836486 | DOT FOODS | REVERSAL MOUNT STERLING IL 62353 |
| 0200426876 | DOT FOODS INC | 1120 N ST W VIDALIA GA 30474-3214 |
| 0200021231 | DOT FOODS INC | 2200 NICKERSON DR MODESTO CA 95358-9489 |
| 0200388846 | DOT FOODS INC | 14600 GATEWAY RD CAMBRIDGE CITY IN 47327 |
| 0200357731 | DOT FOODS INC | 16301 ELLIOTT PKWY WILLIAMSPORT MD 21795-4081 |
| 0200000250 | DOT FOODS INC (DRESCHER) | 4200 CROWN RD LIVERPOOL NY 13088 |
| 0200627256 | DOT FOODS INC (WAREHOUSE) | HIGHWAY 99 S MOUNT STERLING IL 62353 |
| 0200200430 | DOT FOODS INC -HEADQUARTERS | DO NOT SHIP MOUNT STERLING IL 62353 |
| 0200069468 | E G FORREST CO | 900 N TRADE ST WINSTON SALEM NC 27101-1435 |
| 0200049383 | EPICUREAN FOODS | 246 S ROBSON MESA AZ 85210-1524 |
| 0200033984 | FOOD PRO | 321 E 5TH ST FREDERICK MD 21701-5717 |
| 0200934435 | HARBOR WHOLESALE - ROSEBURG 1 | 1601 AUSTIN RD ROSEBURG OR 97471-4502 |
| 0200897067 | HARBOR WHOLESALE 1 | 3901 HOGUM BAY ROAD NE LACEY WA 98516 |
| 0200982742 | HFM FOODSERVICE | 716 UMI ST HONOLULU HI 96819-2337 |
| 0200045892 | JAKES FINER FOODS | 13400 HOLLISTER DR HOUSTON TX 77086 |
| 0200029423 | MCDONALD WHOLESALE COMPANY | 2350 W BROADWAY EUGENE OR 97402-2704 |
| 0200024877 | NICHOLAS & COMPANY | 5520 HAROLD GATTY DR SALT LAKE CTY UT 84116-3725 |
| 0100000305 | PATE DAWSON CO - ATLANTA | 5155 WELCOME ALL RD SW ATLANTA GA 30349-2551 |
| 0200039278 | PATE DAWSON CO - GOLDSBORO | 402 COMMERCE CT GOLDSBORO NC 27534-7048 |
| 0100025754 | PATE DAWSON CO STATESVILLE | 195 BUSINESS PARKWAY DR STATESVILLE NC 28677 |
| 0200370997 | PERFORMANCE FOOD GROUP INC | 12650 E ARAPAHOE RD BLDG D ENGLEWOOD CO 80112-3901 |
| 0200056384 | PERFORMANCE FOODSRV FOX RIVER | 5030 BASE LINE RD MONTGOMERY IL 60538-1125 |
| 0200056466 | PERFORMANCE FOODSRV NORTHERN CA | 6211 LAS POSITAS RD LIVERMORE CA 94551-5101 |
| 0200934884 | PERFORMANCE FOODSRV SOMERSET | 910 HIGHWAY 461 SOMERSET KY 42503-5170 |
| 0200054497 | PERFORMANCE FOODSRV SOUTHERN CA | 16639 GALE AVE CITY OF INDUSTRY CA 91745-1802 |
| 0200860841 | PFG CDC TENNESSEE | 825 MADDOX SIMPSON PKWY LEBANON TN 37090-0757 |
| 0200636584 | PFG CDC TEXAS | 500 METRO PARK DR MCKINNEY TX 75071-1883 |
| 0200007399 | RED DIAMOND INC | 1701 VANDERBILT RD BIRMINGHAM AL 35234-1423 |
| 0200328231 | RENZI BROS | 901 RAIL DR WATERTOWN NY 13601 |
| 0200565585 | SPRINGFIELD GROCERS | 2415 W BATTLEFIELD ST SPRINGFIELD MO 65807-4005 |
| 0200635700 | UNIPRO FOODSERVICE | 2500 CUMBERLAND PKWY SE ATLANTA GA 30339-3942 |
| 0200537683 | UPPER LAKES FOODS INC | 801 INDUSTRY AVE CLOQUET MN 55720-1635 |
| 0200039340 | WOOD FRUITTICHER GROCERY CO | 2900 ALTON RD BIRMINGHAM AL 35210-4393 |

**PRG-1009446 - Fixed Price**

| SCC# | Product Description | Fixed Price<br>Pays To: Distributor |
|---|---|---|
| 00210006154500 | KR 1/5# GRATED PARMESAN | $24.05 / CS |
| 00210006154525 | KR 1/5# GRATED PARMESAN | $24.05 / CS |
| 00210006156600 | KR 1/5# PARMESAN SHRED FRESH | $22.25 / CS |
| 00210006156625 | KR 1/5# PARMESAN SHRED FRESH | $22.25 / CS |
| 00210006488700 | KR 4/1 GA CREAMY TARTAR SAUCE | $38.25 / CS |
| 00544000000100 | A1 2/1GL SAUCE | $62.00 / CS |
| 00544000000200 | A1 12/10Z SAUCE | $35.04 / CS |
| 00544000000300 | A1 24/5Z SAUCE | $38.92 / CS |
| 00544000020100 | A1 2/1GA THICK & HEARTY SCE | $44.26 / CS |
| 00778857106100 | TAPATIO 24/5Z HOT SAUCE | $13.50 / CS |
| 00778858820000 | TAPATIO 12/10Z HOT SAUCE | $11.88 / CS |

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.